

LUMBER/FLITCHES SUPPLY CONTRACT

KNOW ALL MEN BY THESE PRESENTS:



This contract is made and entered into by and between **JUNE BOX FACTORY & LUMBER ENTERPRISES/SIMON PETER B. MONTEMAYOR** of legal age, Filipino, Married and a resident of PUROK 13 PAPAYA, BRGY. SAN VICENTE, BUTUAN CITY, AGUSAN DEL NORTE. Philippines, hereinafter known and referred to as the **SUPPLIER**.

and

BEMBOY LUMBER SUPPLY, a firm duly organized and existing by virtue of the laws of the Republic of the Philippines represented by **RUDELITO TAMAYO ELANDAG**, with postal address at **BARANGAY CONSUELO, GENERAL LUNA, SURIGAO DEL NORTE**, Philippines herein referred to as the **BUYER**.

-WITNESSETH-

WHEREAS, the **SUPPLIER** is a holder of Wood Processing Plant Permit (WPP) duly registered by the DENR with WPP No. RXIII-05-2022 located in San Vicente, Butuan City issued by the Department of Environment and Natural Resources (DENR) on APRIL 1, 2022 and has the capacity to supply as indicated below, to wit:

Inventoried Volume (cu.m.)	Previous Commitments (cu.m.)	Available Balance (cu.m.)
564879.36bft.	20,000.00 bdft.	544,879.36bdft.
TOTAL		

WHEREAS, the **BUYER** will be engaging in the operation of Lumber Dealing and has not violated pertinent DENR laws, rules and regulations.

WHEREAS, the **SUPPLIER** is willing to sell and supply flitches/chainsaw-cut lumber with total volume of **20,000 Bdft.** of Planted Species (Gmelina 3,000 bdft./Mahogany 7,000 Bdft. /Mangium 10,000 Bdft..) as may be required or necessary for the latter's Lumber Dealer business and the **BUYER** is willing to purchase from the supplier such available volume.

NOW, THEREFORE, for and in consideration of the premises mentioned hereinabove, the parties here agree to enter into this **LUMBER/FLITCHES SUPPLY CONTRACT** where the supplier shall sell and deliver to the BUYER logs/flitches/chainsaw-cut lumber from its approved PTPR under the following terms and conditions.

1. That the deliveries of logs/flitches/chainsaw-cut lumber under this contract shall be covered by the necessary supporting documents from the DENR and other Government agencies certifying as to the legality of the source;
2. That the quality of logs/flitches/chainsaw-cut lumber to be supplied shall be scaled by the SUPPLIER at the area for the determination of final grading as basis for the pricing and same shall be graded and rescaled by the BUYER upon delivery;
3. The SUPPLIER shall not be held liable and/or responsible for any omission and/or delay in the performance of its obligation under this contract caused by or arising from FORCE MAJEURE or ACTS OF GOD and other fortuitous events.

3. The SUPPLIER shall not be held liable and/or responsible for any omission and/or delay in the performance of its obligation under this contract caused by or arising from FORCE MAJEURE or ACTS OF GOD and other fortuitous events.

THAT both parties further agreed that:

1. The approving officer shall be free from any liability, criminal and/or otherwise in the event of breach of contract between the two (2) contracting parties;
2. The DENR shall not be made a party of any breach arising from non-performance of the obligations stipulated in the contract by any of the contracting parties.
3. Any proven violations against pertinent DENR laws, rules and regulations committed by either of the contracting parties shall be sufficient cause for the cancellation of this contract.
4. This agreement shall be subject to other pertinent DENR laws, rules and regulations governing that matter.
5. The validity of this agreement shall be **one (1) year** effective immediately upon its approval by the DENR and automatically deemed earlier terminated when the volume contracted are exhausted, whichever comes first. It is being understood that either party may withdraw from it and declare it cancelled and of no effect within thirty (30) days written notice on the other party and that the DENR Region 13 shall also be notified.

IN WITNESS WHEREOF, the parties have hereunto affixed there signatures this day of _____, 2025 at _____, Mindanao, Philippines.

SIMON PETER B. MONTEMAYOR
Supplier

RUDELITO TAMAYO ELANDAG
Buyer

Witnesses:

NELSON B. CARANZO
OIC, CENR Officer

ADELAIDA R. BORJA
PENR Officer

Approved by:

MARITIS M. OCAMPO
OIC, REGIONAL EXECUTIVE DIRECTOR



Note: The actual supply/delivery under this contract shall only be allowed if both parties have valid permits/authorities issued by the DENR.

Republic of the Philippines)
Province of _____ : S.S
Municipality/City of _____)

BEFORE ME, at the _____, Philippines this _____ day of _____, 2025 personally appeared _____ with Community Tax Certificate No. _____ issued on _____ at _____ and _____ with Community Tax Certificate No. _____ issued on _____ at _____ both known to me that the same is their free and voluntary deed.

This instrument consists of _____ pages including this page wherein acknowledgment is written and has been signed by the parties and their instruments witness.

WITNESS MY HAND AND SEAL at the place and date first above written.

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Book No. 75
Series of 2025


ATTY. ERNESTO D. ROSALES
Notary Public
Until December 31, 2026
PTR No. 2761970 (01/28/2025)
MCLE No. VIII-0031512 (10/16/2024)
IBP No. 520320 (01/27/2025)
ROLL No. 23145 / TIN No. 930-722-989-000
Serial No. 03-11-2025





**WOOD PROCESSING PLANT
(MINI-SAWMILL)
No. RXIII- 05- 2022**

Pursuant to Presidential Decree No. 705 as amended, Republic Act No. 460 of 1950 and other existing laws and regulations, a Wood Processing Plant Permit is hereby issued to:

JUNE BOX FACTORY AND LUMBER ENTERPRISES (JBFLE)

an entity of the Philippines with office/permanent address in Barangay San Vicente, Butuan City, Agusan del Norte, to operate a Wood Processing Plant (Mini-sawmill) located in Barangay San Vicente, Butuan City, Agusan del Norte, having a Daily Rated Capacity (DRC) of approximately 4.716 cubic meters (m³) per 8-hour shift of operation.

The permittee has log supply contracts for a period of five (5) years with:

Suppliers	Contracted Volume (m ³)
1) Datu Ronald L. Manhumosay, authorized representative of CADT-118 with approved ADSDPP	10,000.0
2) Jimmy Pagaura	825.16
TOTAL	10,825.16

which volume is considered adequate to supply the wood requirements of the mill and this permit.

This permit is subject to the provisions of Presidential Decree No. 705 as amended by Executive Order No. 277 and other applicable laws, including the rules and regulations promulgated thereto, and subject to the Terms and Conditions enumerated in the succeeding pages (marked as Annex A), and such other additional regulations which may hereinafter be prescribed.

This permit is effective on the date of issue and expires on April 01, 2027.

Issued on April 01, 2022 at Butuan City, Philippines.



Approved:

NONITO M. TAMAYO, CESO III
Regional Executive Director